

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE CONCURRENT
5 RESOLUTION 1025

By: Hilbert of the House

and

Pugh of the Senate

8 AS INTRODUCED

9 A Concurrent Resolution supporting the elimination of
10 the United States Department of Education and urging
11 the United States Congress to fully cooperate with
12 such efforts.

13 WHEREAS, the Tenth Amendment to the United States Constitution
14 clearly states that the powers not delegated to the federal
15 government by the Constitution, nor prohibited by it to the States,
16 are reserved to the States or to the people; and

17 WHEREAS, education is not enumerated as a responsibility of the
18 federal government by the United States Constitution; and

19 WHEREAS, the creation of the United States Department of
20 Education in 1980 has led to significant federal overreach in
21 education through burdensome regulations and one-size-fits-all
22 mandates; and

23 WHEREAS, despite substantial increases in education funding,
24 with the Oklahoma Legislature increasing education-related funding

1 by nearly seventy-five percent (75%) since 2018, gaps in meeting
2 educational needs continue to cause Oklahoma students to suffer; and

3 WHEREAS, student outcomes in Oklahoma remain alarming, with only
4 approximately one in four Oklahoma students performing at grade
5 level in reading or mathematics, indicating that most students are
6 not proficient in either subject; and

7 WHEREAS, Oklahoma's low academic outcomes reflect a systemic
8 pattern of underperformance across grade levels, subject areas, and
9 student populations, rather than isolated deficiencies in any single
10 group or measure; and

11 WHEREAS, Oklahoma's current low educational ranking is not
12 inevitable, as the state previously performed near the national
13 average and has declined significantly in recent years while other
14 states with similar challenges and demographics have improved,
15 demonstrating that state and local education policies materially
16 impact student outcomes and that increased local control and
17 innovation are critical to reversing this decline; and

18 WHEREAS, national fourth- and eighth-grade reading scores remain
19 roughly unchanged since the early 1990s when measurements first
20 began; and

21 WHEREAS, national student reading scores have been on a decline
22 since 2019 with approximately forty percent (40%) of fourth graders
23 reading below a basic reading level based on national standards,
24 which is the largest percentage since 2002, and one-third (1/3) of

1 eighth graders having failed to meet national reading benchmarks,
2 which is the largest percentage ever; and

3 WHEREAS, states and local communities possess unique knowledge
4 of their students' educational needs and are best positioned to
5 develop the curriculum and policies that reflect their values and
6 priorities; and

7 WHEREAS, President Donald J. Trump has publicly expressed a
8 desire to eliminate the United States Department of Education and
9 rightfully return primary authority over education to the states;
10 and

11 WHEREAS, the elimination of the United States Department of
12 Education is not only a constitutional necessity and consistent with
13 the spirit of the Tenth Amendment to the United States Constitution,
14 but could ensure more efficient use of taxpayer dollars and improve
15 student outcomes through greater state and local control.

16 NOW, THEREFORE, BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES
17 OF THE 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE, THE SENATE
18 CONCURRING THEREIN:

19 THAT the Oklahoma House of Representatives and the Oklahoma
20 State Senate support federal efforts to eliminate the United States
21 Department of Education and urge the United States Congress to fully
22 cooperate with these efforts.

23
24 DIRECT TO CALENDAR.